

National Educational Assessment and Examinations Agency (NEAEA)

National Exit Examination for LL.B Programme Students of Ethiopian Law Schools

Academic Year *2015/2016*

Part III: Procedural Laws and Skills Courses

31 March 2016

Time allowed: 3 (Three) Hours

INSTRUCTIONS:

1. THIS IS A CLOSED BOOK EXAM FOR ALL MATERIALS EXCEPT CLEAN COPIES OF THE CIVIL PROCEDURE CODE, THE CRIMINAL PROCEDURE CODE AND THE FEDERAL COURTS ESTABLISHMENT PROCLAMATION WHICH CANNOT BE LENT TO NOR BORROWED FROM OTHER STUDENTS.
2. THE EXAM HAS FIVE SECTIONS. THE GRADES ALLOTTED FOR EACH ARE INDICATED BESIDE THE TITLE OF THE SECTION.
3. WHENEVER APPROPRIATE, SUPPORT YOUR ARGUMENTS WITH PERTINENT LEGAL PROVISIONS.
4. YOU ARE EXPECTED TO ALLOCATE YOUR TIME BASED ON THE MARKS ALLOTTED PER QUESTION.
5. WRITE YOUR ANSWERS IN THE ANSWER SHEET PROVIDED.
6. SWITCH OFF YOUR MOBILE PHONES.

Please do not turn this page until you are told to do so!

SECTION I: MULTIPLE CHOICE QUESTIONS (25 %)

1. Choose the best answer and write the letter of your choice on a separate answer sheet appended to this exam booklet. 1. Conflict of laws deals, among others, with:

- a. Material jurisdiction;
- b. Local jurisdiction;
- c. International jurisdiction;
- d. Judicial jurisdiction; ~~:-:----~~
- e. Inter-state jurisdiction.

Conflict

2. Identify a statement that is correct.

- A. In Ethiopia, there are no rules that regulate recognition and/or enforcement of foreign judgments.
- B. Ethiopia is a state party to the 1958 New York Convention on the Recognition and Enforcement of Foreign Arbitral Awards.
- C. In Ethiopia, there are no rules that regulate recognition and/or enforcement of foreign arbitral awards.
- D. Reciprocity is not among the conditions for enforcement of foreign arbitral awards in Ethiopia.
- E. The Ethiopian Federal High Court is the court with original first instance jurisdiction to entertain applications for enforcement of foreign arbitral awards.

3. Which of the following is false about conflict of laws in Ethiopia?

- A. There is a potential for intra-state conflict of laws problems to arise in Ethiopia.
- B. Supreme courts of Regional States have the power to see conflict of laws cases by delegation .
- C. The F.D.R.E. Constitution contains a notion comparable to the American 'full faith and credit clause.'
- D. The power to enact conflict of laws rules is neither Openly given to the Federal Parliament nor to the Regional states.
- E. The Federal High Court has original, first instance jurisdiction to see conflict of laws cases.

4. Which of the following might not be considered as an advantage of recognizing foreign judgments/arbitral awards?

- A. Judicial economy.
- B. Discouraging non-cooperating judgment debtors.
- C. Encouraging forum shopping.
- C. Facilitation of international commerce.
- D. Avoiding re-litigation.

5. Identify the **correct** statement about conflict of laws.

- A. Private international law is a branch of public international law .
- B. Conflict of laws became known to the world only very recently.
- C. Conflict of laws deals with private "as well as public law matters.
- D. The overarching, ultimate purpose of conflicts law is ensuring fairness and preventing injustice.
- E. Conflict of laws is international in origin and application.

6. Identify the **incorrect** statement.

- A. any civil law countries regard questions of jurisdiction and enforcement of foreign judgments/awards as falling outside the scope of conflict of laws.
- B. Many common law countries regard questions of jurisdiction and enforcement of foreign judgments/awards as falling outside the scope of conflict of laws.
- C. Some civil law countries like France consider the laws of nationality and citizenship as falling within the ambit of conflict of laws.
- D. There is no consensus on the exact scope of conflict of laws.
- E. Both civil law and common law countries recognize that conflict of laws deals, among others, with choice of the applicable law.

7. Which of the following is false?

- A. Governing law in case of intestate succession of movable property is

- usually the law of last domicile of the deceased.
 - B. Governing law in case of succession to immovable property is usually the law of the country where the property is located.
 - C. As opposed to contracts, the parties are not generally free to choose the governing law in tort matters.
 - D. The traditional rule governing choice of law in tort matters is the law of the place of wrong.
 - E. In tort situations where conduct and injury occur in different states, the governing choice of law is the law of a neutral third country.
8. Choose an **invalid** statement.
- A. In conflict of laws, public policy should be interpreted in a non-restrictive manner.
 - B. If application of a foreign law runs contrary to accepted norms, morality and accepted sense of justice of a forum state, its application may be differed.
 - C. Public policy provides an exception to the normal operation of choice-of-law rules.
 - D. A mere difference between forum law and foreign law does not imply violation of public policy of the forum state and hence does not bar a foreign law from application.
 - E. A court that rejected the application of a foreign law on public policy grounds should either apply forum law or dismiss the case.
9. Which of the following statements is **correct** regarding party autonomy?
- A. Parties enjoy unlimited freedom to choose the governing law in property matters.
 - B. Parties enjoy, as a rule, freedom to choose the governing law in commercial contracts.
 - C. Parties enjoy absolute freedom to choose the governing law in employment contracts.
 - D. Parties are usually not free to choose the governing law in consumer contracts;
 - E. Choices of law clauses made before a dispute arises are generally more likely to be enforced than choice of law clauses made after a dispute arises.
10. Ethiopian law of recognition/execution of foreign judgments does not require that;
- A. the judgment to be recognized/enforced has to be a final one .
 - B. the judgment to be recognized/enforced needs to have been given by a court duly established and constituted
 - C. the judgment debtor must necessarily participate in the foreign litigation.
 - D. recognition/Execution of the foreign judgment in Ethiopia must not result in violation of Ethiopian public policy
 - E. execution of Ethiopian judgments must be allowed in the country where the judgment to be executed was given.
11. Which one of the following is least related to the rest.
- A. Public international law
 - B. Conflict of laws
 - C. Law of multistate problems
 - D. Private international law
 - E. Law of transnational problems.
12. Which of the following **is not** relevant to pretrial lawyering?
- A. Collecting and analyzing documents that are relevant as evidence
 - B. Series of discussion with the client about the various issues relevant to the case
 - C.,. Oral arguments in court
 - D. Preparing pleadings and filing the statement of claim

E. Evaluating the potential claims of the client and the possible defenses and counter claims of the respondent.

13. One of the following is **the most appropriate** in the retrieval of legal facts:

- A. Identify the location of the court before the date of appointment
- B. Intensive research on scholarly writings rather than the laws and Proclamations
- C. Give primary attention to examining the previous decisions of the court which is in the course of hearing the case
- D. Retrieval of relevant laws, identification of all facts and gathering of Evidence
- E. Give prime attention to examine whether the client is telling the truth with regard to his claims.

14. Which one of the following options is **the most appropriate** action for a lawyer toward the optimum advantage of a her/his client:

- A. Filing a case to put pressure on the other party so that the latter can come to negotiation for out of court settlement
- B. Advising a client that litigation should be the last option in the resolution of any case
- C. Primacy to litigation rather than other options of dispute settlement if the case seems favourable to the client, because the other party will pay court fee and litigation cost .
- D. Advising the client that s/he should in all cases avoid court litigation and all forms of dispute settlement mechanisms and focus on his business activities even if there are laws in her/his favour .
- E. Under all circumstances persuade the client towards alternative dispute settlement mechanisms and entirely avoid litigation.

15. In a case that involves injury caused to the victim due to negligence while driving a vehicle, one of the following **is not** relevant in assessing damages incurred by the victim:

- A. Medical expenses
- B. Lost income
- C. Time of the accident
- D. Disability
- E. Pain and suffering.

16. One of the following is not true regarding processes related with trial after the plaintiff's statement of claim:

- A. Serving summons
- B. First hearing
- C. The possibility of adjudication without trial where there is no issue in dispute (in civil cases).
- D. The possibility of adjudication without trial where the accused pleads guilty in a manner acceptable by the court (in criminal cases)
- E. Execution of judgment.

17. Which one of the following **does not** represent the tasks of a lawyer during an appeal?

- A. Identifying valid issues of appeal.
- B. Preparing the appellate brief
- C. Under all circumstances, the need to prove fundamental error in law committed in the lower court's decision.
- D. Persuasive oral arguments
- E. Streamlining arguments in response to questions from the appellate court.

18. According to the Civil Procedure Code, an appellate lawyer **cannot** introduce new evidence unless:

- A. the other party agrees that it is acceptable
- B. The new evidence is crucial in the eyes of the party which seeks to submit it

- C. the party that seeks to produce the new evidence was unaware of its existence during the trial at the lower court
- D. the lower court had refused to admit evidence which ought to have been admitted
- E. the party that produces the new evidence proves that its request is made in good faith.

19. The Law of Evidence does not deal with

- A. collection and gathering of evidence
- B. presentation of evidence at trial
- C. determination of the particular material facts which a party to litigation must prove in order to succeed in his/her claim or defense and to show his entitlement to relief or to obtain a conviction
- D. weighing of evidence
- E. admissibility of evidence.

20. Which one of the following is correct in respect of direct evidence?

- A. It refers to evidence that is based on personal knowledge or observation and that, if true, proves a fact without inference or presumption.
- B. It signifies evidence which is applied to the principal fact, indirectly, or through the medium of other facts, from which the principal fact is inferred.
- C. It refers to evidence that is supplementary to evidence already given in court.
- D. It refers to evidence that has any tendency to make the existence of any fact that is of consequence to the determination of the action more probable or less probable than it would be without the evidence.
- E. It stands for a statement, other than one made by the declarant while testifying at the trial or hearing, offered in evidence to prove the truth of the matter asserted.

21. One of the following is **not** a point of difference between the law of evidence that is applicable in civil and criminal proceedings.

- A. Admissibility of hearsay evidence
- B. Standard of proof
- C. Burden of proof
- D. Cross-examination of witnesses
- E. Privilege against self-incrimination.

22. Exclusionary rules of evidence are primarily associated with

- A. common law jurisdictions
- B. civil law jurisdictions
- C. socialist legal systems
- D. Scandinavian countries
- E. hybrid legal systems.

23. One of the following is a rule of evidence that **does not** basically operate to protect an accused in criminal proceedings:

- A. exclusion of character evidence
- B. public interest immunity
- C. right to remain silent
- D. burden of proof
- E. standard of proof.

24. One of the following is a form of evidence produced before courts for inspection which includes material objects, physical characteristics of any person or animal and demeanour of witnesses:

- A. Documentary evidence
- B. real evidence
- C. Oral evidence
- D. Forensic evidence,
- E. Electronic evidence.

25. In criminal cases, the facts in issue are ascertained by reference to:

~ the essenti~l elements of.the o.ffence in the charge

-8. the facts raised by an affirmative defense
- C. the staJ~l}lent of the accused during the first hearing
- D . the facts agreed upon between the accused and the prosecutor
- E. the facts which eye witnesses testify .



SECTION II: MATCHING (10%)

Match each item under Column "A" with its best corresponding item under Column "B".

Column A

P

1. Transfer of suit

2.

Request for admission of ~cument

If

Summons

3"

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4. Order of proceeding S

5. Re-examination of witness

6. Abatement of suit f-

7. Suit for the dissolution XYZ Share Company

8. Interim sale

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9. ~tion L

10. Dismissal of suit

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Column B

A. O~ by ! court r~istrar

B. Change of venue

C. Non-appearing plaintiff

D.Defendant's ~ailure to appear

E. Pre-trial discovery

F. Death of a party

G. Right to be heard

H. Beginning of trial

1. Accelerated P£fcedlJl:~

J. Summary procedUJ~

K. r~jonal ~ea~ure

L. Orde~ by a court president

M. Opponent

N. Consolidation of suits

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P. IssueJ\

Q. ~n~{L.

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SECTION III: SHORT ANSWERS (15%) *N~D ~*

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Wt1: .---v~

Give a short answer to the following questions:

- ~ 'W ~

3.1. State the two basic purposes of cross-examinations. About fifty words 5 points

3.2. Briefly explain the legality of *onus reversal* as it applies to the principle of presumption of innocence. About fifty words 5 points

3.3. Explain the doctrine of exclusionary rule. About fifty words 5 points

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SECTION IV: ESSAY TYPE QUESTIONS (20%)

4.1. Explain the legal status of prosecution disclosure under the Ethiopian criminal procedure law. About one hundred words 10 points

4.2. Briefly describe the major differences that exist between the rules of evidence in criminal and civil cases. About one hundred words 10 points

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SECTION V: HYPOTHETICAL CASE PROBLEM (30 %)

Ato A left the Regional State of X five years ago to look for a job in the Regional State of ~ where he currently lives and also owns a successful business. Recently, Ato A has inherited a residential villa from his late father in the Regional State ~ which he later sold to Woizero B for a price of Birr 400,000 out of which Birr 300,000 was paid on the date of the signing of the contract. Woizero B was a long time friend of Ato A's late father and she lives in a small town at the outskirts of Regional State of X which is within the Regional State of Y.

Although the due date for delivery has passed, Woizero B did not feel comfortable to seek the immediate delivery of the villa she bought from Ato A, because she thought that Ato A needed some time to clear his late father's personal effects from the villa. As the days passed, however, Ato A was influenced by close relatives to change his mind and he cancelled the contract he had concluded with Woizero B. She was surprised by Ato A's action, and asked him to receive the remaining Birr 100,000 and deliver the house to her. However, Ato A offered to return the money he had received on the date of the contract and he refused to vacate the villa and transfer its possession and ownership.

Woizero B is considering a legal action against Ato A to compel the latter to transfer possession and ownership of the villa in accordance with the valid contract of sale they have concluded in the Regional State of Z. But she is not sure as to where she can file a lawsuit given the complexity of jurisdictional issues in Federal Ethiopia.

She has come to you for legal advice. **Write** a legal memorandum advising Woizero B as to a court that has all the requisite elements of jurisdiction to hear and decide her claim against Ato A. Assume that all the Regional States of ~, ~ and Z are federating units in Ethiopia and that Ato A and Woizero B are Ethiopian nationals.

Letter

A lives in Z
property in ~~(X)~~

B (buyer) lives in Y

! Concluded in Z

place
19-22
20
24

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① one of the parties foreign (out of the state)

2 Property is situated in another state

3 transaction is held somewhere

28126 PIL (Contract of laws)

conflict laws issue to federal
high court

Regional Supreme Court

~~X Regional S. Court~~

Answer Sheet Cover Page

Part III: LL.B Exit Exam

The data on this page is accessible only to NEAEA

DIRECTIONS:

Please read the following directions carefully before you start to work on the examination.

1. Write your First Name, Father's Name (patronymic) and Grand Father's Name (surname) in BLOCK letters in the spaces provided below.
2. Write the Name of your University and your Registration Number on the spaces provided below in BLOCK letters.
3. Do not write your Name, Registration Number or any other information regarding yourself inside the answer sheet.
4. The box (here-below) which states the Code Number is for use by the National Educational Assessment and Examinations Agency (NEAEA).

31 March 2016 (22 Megabit 2008 E.C.)

PART III: PROCEDURAL LAWS AND SKILLS COURSES

First Name

Father's Name

Grand Father's Name

Registration I. D. Number _____

UNIVERSITY _____

Code Number (To be filled by NEAEA) _____